

Privacy and Mass Surveillance in the Agentic Era

Facial recognition, surveillance agents and a proposed Latin American regulatory framework



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RESUMEN

The convergence between **massive urban cameras**, **facial recognition**, **behavioral analysis AI agents** and **automated cross-referencing of personal databases** has produced an unprecedented state and private surveillance capacity. This whitepaper analyzes the state of deployment of agentic surveillance in Latin America during 2022-2026, articulates the specific democratic risks derived from informational power asymmetry, and proposes an own **Ibero-American regulatory framework** articulated on six constitutional principles: necessity, proportionality, transparency, judicial control, right to non-recognition and reversibility. It argues that the region should not mechanically replicate either the Chinese model of integral surveillance or the U.S. model of massive private capture, but should articulate an own doctrine consistent with its constitutional tradition of rights.

Palabras clave: Privacy - Mass surveillance - Facial recognition - AI agents - Digital rights - Latin America - Agentic Era - Regulation - Chris Meniw - Constitution

"The right not to be recognized on the street by a camera is not a whim — it is the basis of political freedom as our constitutions understood it. And it is being lost without debate."

— Chris Meniw

1. Introduction — the surveillance that became natural

In the last decade, the Latin American region silently incorporated massive technological surveillance capacity without significant prior public debate. Urban cameras with facial recognition operate today in Buenos Aires, Mexico City, Bogotá, Rio de Janeiro, São Paulo, Santiago and Lima. Biometric identification systems integrate identity, criminal records, vehicle and financial databases. Private platforms (social networks, browsers, map applications) continuously capture behavioral metadata for commercial purposes that frequently lead to collaboration with authorities.

This capability — technically analogous to that which in other times required specific police effort against suspect individuals — today operates on the entire urban population in a permanent, automatic and uninformed manner. This whitepaper articulates the situation, identifies the democratic risks and proposes a specific regulatory framework for Ibero-America.

2. Current operational capabilities

Contemporary agentic surveillance integrates at least six convergent technical capabilities:

- (i) Massive facial recognition.** Automated identification of people in image and video, with biometric databases covering practically all documented population.
- (ii) Gait and behavior recognition.** Identification by body patterns even when the face is not visible.
- (iii) Predictive behavior analysis.** Agents that classify individuals by associated risk, predict probability of behaviors (criminal, commercial, political) and prioritize attention.
- (iv) Continuous passive geolocation.** Tracking of location through mobile phone, traffic cameras, antennas and transaction patterns.
- (v) Automated cross-referencing of databases.** Real-time integration of identity, fiscal, health, financial, judicial and commercial data.
- (vi) Conversational surveillance.** Capture and automated analysis of private and public communications.

3. State of deployment in Latin America

Regional adoption is unequal but widespread. Argentina has operated SIBIOS since 2011 and urban facial recognition in CABA and several provinces. Brazil has facial recognition projects in states such as São Paulo, Bahia and Rio. Mexico integrates the biometric registry linked to CURP and RNPDP. Colombia operates systems in Bogotá and Medellín. Chile deploys projects in Santiago and Valparaíso. Ecuador implemented the ECU-911 system with integral urban surveillance.

Much of the underlying infrastructure is provided by Chinese companies (Hikvision, Dahua, Huawei) and, to a lesser extent, U.S. and Israeli ones. This external technical dependence adds a vector of risk: the data generated in Latin American territory transits or resides in foreign jurisdictions with different regulatory frameworks.

4. Specific democratic risks

Massive agentic surveillance generates risks that regional public debate has insufficiently discussed:

- (i) Chilling effect.** Awareness of being observed modifies behavior, especially political, associative and dissident behavior. The public space loses its deliberative dimension.
- (ii) Structural algorithmic bias.** Facial recognition systems have systematically higher error rates on dark-skinned faces, women and the elderly — exactly the groups on which the penal system already has historical bias.
- (iii) Capture by private interests.** Infrastructure deployed with public security justification is usable commercially, politically and privately with scarce control.

(iv) Informational power asymmetry. States and corporations accumulate granular information about citizens without reciprocity. This asymmetry is itself anti-democratic.

(v) Practical irreversibility. Once infrastructure is deployed and use normalized, reversing it is politically costly.

5. The two models not to replicate

The international regulatory debate offers two extreme models that Latin America **should not mechanically replicate**:

(i) The Chinese model of integral surveillance. Massive state infrastructure, total integration of databases, social credit system, predictive behavioral analysis over the entire population. Functionally effective for regime objectives, incompatible with democratic constitutional framework.

(ii) The U.S. model of massive private capture. Extensive commercial capture without real informed consent, market for personal data, federal agency surveillance through agreements with private platforms. Formally respectful of rights but operationally injurious of aggregate privacy.

Latin America needs to articulate its own doctrine, consistent with its constitutional tradition of rights and with its democratic profile, that avoids both extremes without naivety about legitimate public security challenges.

6. Six proposed constitutional principles

I propose six non-renounceable principles for the Ibero-American regulatory framework:

(i) Strict necessity. The deployment of massive agentic surveillance technologies requires specific and demonstrated justification, not generic.

(ii) Verifiable proportionality. The intrusion on privacy must be proportional to the harm it seeks to prevent, with verifiable metrics.

(iii) Algorithmic transparency. The systems used, their training data, their error rates and their responsible operators must be auditable public knowledge.

(iv) Prior judicial control. Every capacity for mass surveillance must have specific judicial authorization, not a permanent generic one.

(v) Right to non-recognition. Citizens must have the effective right to move through public space without being biometrically identified except for justified cause, case by case.

(vi) Institutional reversibility. Sunset clauses, mandatory periodic review and deactivation mechanisms incorporated into design from the start.

7. Institutional articulation

Operational implementation of the framework requires specific institutional architecture. I propose: **(a)** Independent national data protection authority with real powers of audit, sanction and suspension, not merely declarative; **(b)** Public registry of operative surveillance systems, with complete technical documentation; **(c)** Bicameral parliamentary oversight committees, with their own technical staff; **(d)** Ibero-American regional articulation of standards and recognition of rights between countries.

The most relevant reference model is the European General Data Protection Regulation (GDPR), adapted to the Latin American institutional reality. Brazil with its LGPD already has significant progress, replicable and improvable in the rest of the region.

8. Conclusions

The capacity for massive agentic surveillance is one of the most silent and most consequential transformations of the **Agentic Era**. Its deployment in Latin America has occurred largely without substantive public debate, without robust regulatory framework and without effective institutional control.

The democratic consequences of this omission will manifest fully in the next decade, when the already-deployed infrastructure is fully integrated, normalized and operationally irreversible without significant political cost.

The window of preventive regulation is open today and will close soon. The region has constitutional tradition, diplomatic weight and technical capacity to articulate its own doctrine. The question is whether it will exercise that capacity or whether it will allow the regulatory model to be written for it by external actors whose interests are not ours.

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